



Introduction to the Legal System II Electoral Systems



List of Contents

I. Introduction

II. Electoral Systems

a) Majority Systems

- i. Plurality
- ii. Absolute Majority
 - I. Two Round Runoff
 - II. Alternative Vote/Instant Runoff

b) Proportional Representation (PR)

- i. List PR:
 - i. Methods based on dividers
 - ii. Methods based on quota
- ii. Single Transferable Vote

c) Mixed systems:

- i. Independent;
- ii. Dependent.

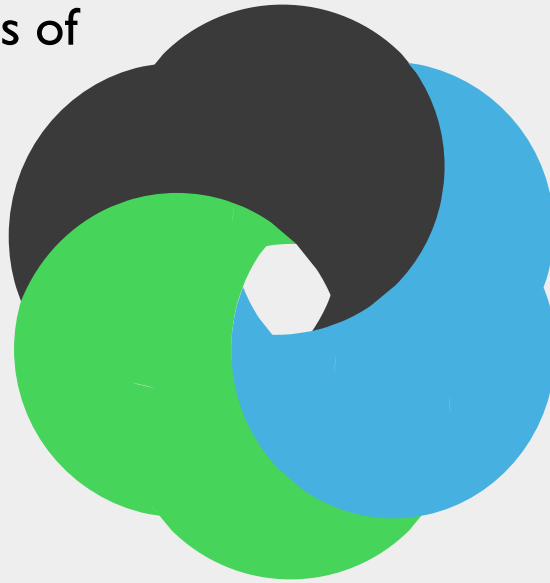


Electoral Systems

| Electoral Systems

1. Electoral Systems

The formalities through which Members of Parliament (MPs) are elected.



2. Electoral Laws

All legislation concerning elections.

3. Electoral Formula

Formula used to transform votes into seats in Parliament.



2. Electoral Laws

All legislation concerning elections.

- Political Rights

1. Right to vote;
2. Right to stand for office;
3. Freedom of expression;
4. Freedom of association (e.g. political party);
5. Freedom of peaceful assembly.

- Relationship Democracy - Elections

- Election is a prerequisite of democracy
- !In the absence of these rights elections do not serve a purpose of real democracy!



2. Electoral Laws

All legislation concerning elections.

Electoral integrity:

1. 'Good' elections;
2. Elections that meet 'international electoral standards';
3. Notion of electoral integrity covers all stages of electoral process (e.g. registration of candidates and voters, campaign, voting and counting, etc.).





2. Electoral Laws

All legislation concerning elections.

Electoral malpractices, such as the violations of electoral integrity:

- Ballot box manipulations (stuffing etc.)
- Vote-buying
- Voter intimidation and pressure
- Misuse of public resources
- Media bias
- Restrictive ballot access
- Unfair campaign/campaign finance rules



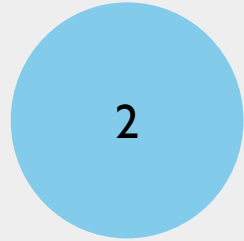
2. Electoral Laws

All legislation concerning elections.

Factors affecting the choice of electoral system



Media bias



Vote-buying



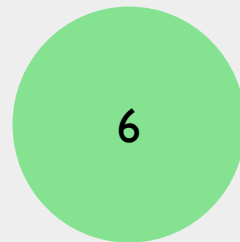
Restrictive ballot
access



Misuse of public
resources



Ballot box
manipulations
(stuffing etc.)



Voter intimidation
and pressure

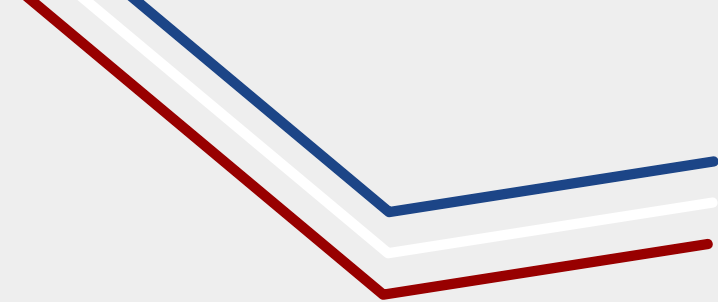


Unfair campaign/
campaign finance rules



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



On the basis of the electoral formula, we can distinguish:

Majoritarian System

Proportional Representation
System

Mixed System

Plurality

List PR

Independent

Absolute majority

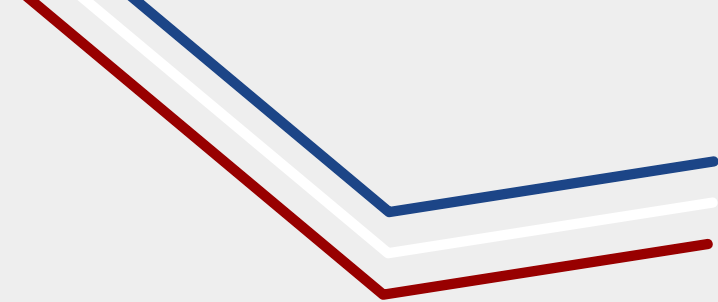
Single
Transferable Vote

Dependent



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



Majoritarian System

- The candidate obtaining the majority of the votes wins.
- Majoritarian systems are usually connected to uninominal districts (also called single-member constituencies).
- Majoritarian systems have a selective effect on the political system.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Plurality

- A. FPTP/SMDP;
- B. Single Non-Transferable Vote (SNTV).

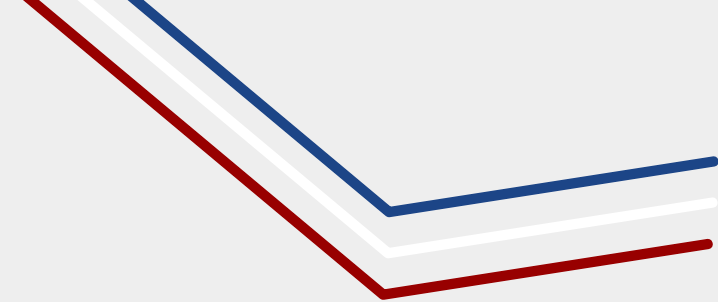
Absolute majority

- A. Two Round Runoff;
- B. Instant Runoff/Alternative Vote/ Preferential Voting;
- C. Supplementary Vote System.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



Majoritarian System

Plurality

- **Relative majority** (or plurality) of votes is enough to get the seat.
- **Single Member Constituencies**, i.e. each constituency elects only one MP (exception: SNTV).
- Each Party presents only one candidate for each constituency.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Plurality

A. FPTP/SMDP;

- Candidates are elected with just a relative majority.
- It is the system adopted in the UK.

Is it possible to have a «wrong winner» like in the US with the plurality system?

Is it possible to have a «wrong winner» like in the US with the plurality system?

- Under the UK's multiparty system, in the most extreme case you could comfortably win the popular vote but get no seats in the House of Commons by coming second in every constituency.
- What is more common is to see a party winning a majority in Parliament with as little as 35% or 36% of the popular vote, as Labour did in 2005 and the Conservatives in 2015. In the 1950s and 1960s, winning parties averaged about 47%.
- And we can see the same kind of thing happening with the vote share of smaller parties. In 2005, the Liberal Democrats received 22% of the votes but only won 62 seats, which was less than 10% of the seats in the House of Commons.
- In the 2015 election, UKIP won 3.9 million votes out of a total of around 30 million votes cast nationally, but only ended up with 1 MP.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Plurality

A. FPTP/SMDP;

- Creates an incentive to **vote strategically** rather than sincerely
- Potential for **disproportionate** translation of votes into seats
- Encourages **Two-Party** Systems rather than Multi-Party Systems
- **Disadvantages minority** parties whose support is spread around the country rather than concentrated in certain areas
- System is very **resistant to extreme parties**



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Plurality

A. FPTP/SMDP;

B. Single Non-Transferable Vote (SNTV).

- Similar to SMDP but it works in multimember districts.
- Multimember districts mean that more than one mandate is to be distributed in the district (two-member district, four-member district etc.).
- Therefore, the party nominates not one candidate but a list of candidates for one district.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Plurality

A. FPTP/SMDP;

B. Single Non-Transferable Vote (SNTV).

- Produces more proportionate effect than SMDP:
 - Candidates can get elected even if they don't get most votes in the district since more seats are distributed.
- Weakens political parties:
 - candidates are competing not only against candidates from other parties but also against their own parties.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Absolute majority

To be elected candidates need an absolute majority of the votes.

Problem:

What happens if no candidate obtains an absolute majority in the first round?

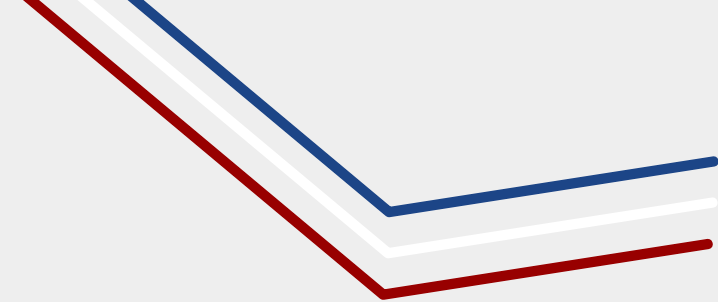
Answer:

- A. Two Round Runoff;
- B. Instant Runoff/Alternative Vote/ Preferential Voting;
- C. Supplementary Vote System.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



Majoritarian System

Absolute majority

A. Two Round Runoff;

- Premise:
- Nobody obtains the absolute majority of the votes in the first round.
- Therefore:
- (1) All candidates who obtain a percentage of votes over the threshold (12.5% in France for legislative election) will go to a runoff election (or second ballot).
- (2) Another possibility is just for the two most voted candidates to go to a runoff election (see France for presidential election).



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Absolute majority

A. Two Round Runoff;

Specifics:

- Second chance to cast a vote for those voters whose candidates lost elections in the first round.
- Less incentives for strategic voting? (e.g. France 2002 presidential election)
- Winning candidates can claim to have won the support of the majority of voters.
- Significant costs on administration of elections (two sets of elections instead of one).



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Absolute majority

B. Instant Runoff/Alternative Vote/ Preferential Voting;

- Electors must express preferences for all the candidates.
- **A candidate wins the seat if obtains an absolute majority after the first preferences of all the candidates have been counted for the first time.**



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Absolute majority

B. Instant Runoff/Alternative Vote/ Preferential Voting;

- It's not a two round system, but one round system.
- If nobody obtains the absolute majority of the votes in the first round
 - then the candidate with the fewest votes is eliminated.
- Ballots assigned to the eliminated candidate are recounted and assigned to those of the remaining candidates who rank next in order of preference on each ballot.
- This process continues until one candidate wins by obtaining more than half the votes.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Absolute majority

B. Instant Runoff/Alternative Vote/ Preferential Voting;

Specifics:

Proximity between voters and their representative (common advantage of majoritarian systems).

Greater opportunity to convey information about voters' preferences.

No wasted votes- the vote is transferred to the next preferable candidate.

Strategic voting is still possible.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Absolute majority

C. Supplementary Vote System.

- **NOT TO BE CONFUSED WITH** Single Transferable Vote used in multi-member districts!!
- Candidate-centered system used in single-member districts
- Voters rank candidates (at most two!).
- If no candidate wins an absolute majority, all but the two leading candidates are eliminated.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Majoritarian System

Absolute majority

Advantages

1. Simplicity;
2. Governability;
3. Strong link of the MP with the territory (geographical representation);
4. Coherent parliamentary opposition;
5. It encourages plural political parties (discourages sectorial divisions);
6. Excludes extremist parties (unless they are territorially concentrated).

Disadvantages

1. Excluding minority parties from fair representation;
2. Far less likely to give representation to racial or ethnic minorities;
3. Regional Fiefdoms; Wasted Votes;
4. Open to the manipulation of electoral boundaries: gerrymandering.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

- The number of seats assigned to each list is proportional to the votes obtained.
- Usually these systems are connected to multi-seat constituencies.

List PR

A. Methods based on dividers

B. Methods based on quota

Single
Transferable Vote



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

List PR

Each party nominate a list of candidates:

- Closed party lists: the order of candidates elected is determined by parties.
- Open party lists: along with the preferred party, voters may also indicate their favourite candidate within the party.
- Free party lists: voters have multiple votes that they can allocate either within one party list or across different party lists.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

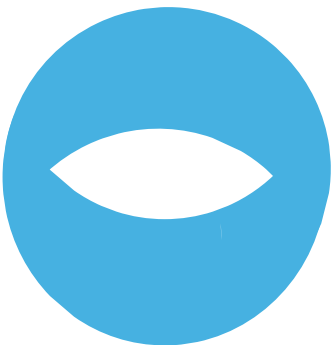
Proportional System

List PR

A. Methods based on dividers

Total number of votes is divided by a series of divisors

- I. d'Hondt;
- II. Sainte-Laguë.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

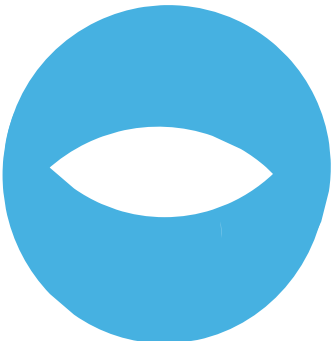
Proportional System

List PR

A. Methods based on dividers

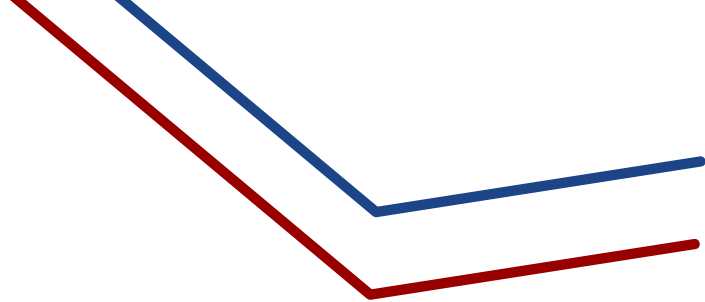
Total Seats to be assigned: 12

Divider:	Party A	Party B	Party C	Party D	Party E
1	250.000	100.000	85.000	130.000	31.000
2	125.000	50.000	42.500	65.000	15.500
3	83.333	33.333	28.333	43.333	10.333
4	62.500	25.000	21.250	32.500	7.500
5	50.000	20.000	17.000	26.000	6.200
Seats	5	2	2	3	0



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



Proportional System

List PR

A. Methods based on dividers

Note the dividers are always odd and the distance between each divider may vary. One could even begin with a divider other than one

Divider:	Party A	Party B	Party C	Party D	Party E
1	250.000	100.000	85.000	130.000	31.000
3	83.333	33.333	28.333	43.333	10.333
5	50.000	20.000	17.000	26.000	6.200
7	35.714	14.285	12.142	18.571	4.428
9	27.777	11.111	9.444	14.444	3.444
Seats	5	2	2	2	1 ₃₀



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

List PR

A. Methods based on dividers

D'Hondt v. Sainte-Laguë:

- Typically it is said that the D'Hondt method helps larger parties (it has a lower divisor), while Sainte Laguë helps smaller parties.
- Sainte-Laguë systems normally include minimum thresholds:
 - only parties obtaining more than 5 % votes get seats
- Rarely systems are purely proportional: growingly common are majoritarian correctives such as majority bonuses.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

List PR

A. Methods based on dividers

B. Methods based on quota

The basis for calculation of quotas is the number of seats available in the district, the number of valid votes in the district and modifier of the quota.

- I. Hare;
- II. Droop;
- III. Hagenbach-Bischoff;
- IV. Imperiali.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

List PR

B. Methods based on quota

- I. Hare;

$$\frac{\text{Total Votes}}{\text{Total Seats}}$$

- II. Droop;

$$1 + \frac{\text{Total Votes}}{1 + \text{Total Seats}}$$

- III. Hagenbach-Bischoff;

$$\frac{\text{Total Votes}}{1 + \text{Total Seats}}$$

- IV. Imperiali.

$$\frac{\text{Total Votes}}{2 + \text{Total Seats}}$$



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

List PR

B. Methods based on quota

- The largest remainder method (LRM): to solve the issue of remainder seats.
- It requires the numbers of votes for each party to be divided by a quota representing the number of votes required for a seat.
- The result for each party will usually consist of an integer part plus a fractional remainder.



3. Electoral Formula

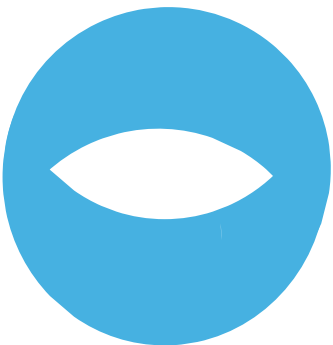
Formula used to transform votes into seats in Parliament.

Proportional System

List PR

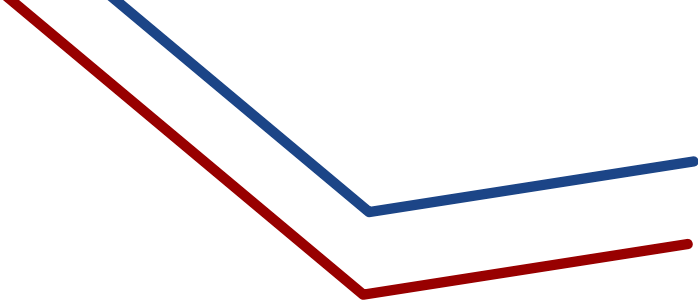
B. Methods based on quota

- Each party is first allocated a number of seats equal to their integer.
- This will generally leave some seats unallocated: the parties are then ranked on the basis of the fractional remainders, and the parties with the largest remainders are each allocated one additional seat until all the seats have been allocated.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



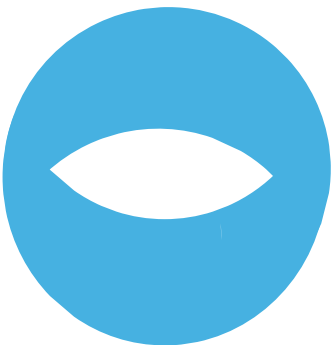
List PR

Proportional System

B. Methods based on Hare Quota

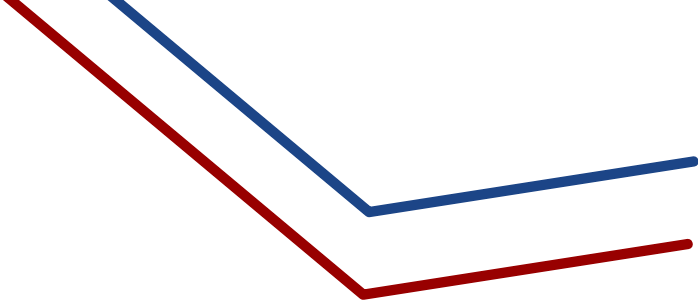
Party	Yellows	Whites	Greens	Reds	Pinks	Blues	Total
Votes	47,000	16,000	15,800	12,000	6,100	3,100	100,000
Seats							10
Hare Q							10,000
Votes/Q	4.70	1.60	1.58	1.20	0.61	0.31	
Automatic seats	4	1	1	1	0	0	7
Remainder	0.70	0.60	0.58	0.20	0.61	0.31	
LRS	1	1	0	0	1	0	3
Total seats	5	2	1	1	1	0	10

Total seats to be allocated: 10.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



List PR

Proportional System

B. Methods based on Hagenbach-Bischoff Quota

Party	Yellows	Whites	Greens	Reds	Pinks	Blues	Total
Votes	47,000	16,000	15,800	12,000	6,100	3,100	100,000
Seats							10+1=11
H-B Q							9,091
Votes/Q	5.170	1.760	1.738	1.320	0.671	0.341	
Automatic seats	5	1	1	1	0	0	8
Remainder	0.170	0.760	0.738	0.320	0.671	0.341	
LRS	0	1	1	0	0	0	2
Total seats	5	2	2	1	0	0	10

Total seats to be allocated: 10.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

List PR

B. Methods based on quota

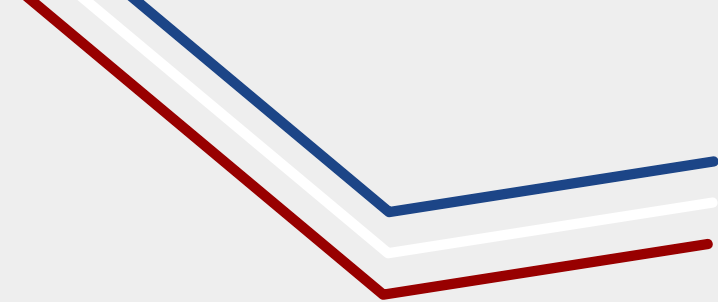
Features of proportional systems influencing allocation of seats:

- District magnitude: a number of seats distributed in one district
 - The smaller magnitude is the less proportional the results will be.
- Electoral thresholds:
 - Natural threshold – always exists, by-product of any proportional electoral system (Netherlands).
 - Formal threshold – written into electoral law (e.g. 10 per cent in Turkey)



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



Proportional System

List PR

Advantages

1. Faithful translation of votes into seats (no wasted votes);
2. Minority parties are adequately represented;
3. More Diverse Lists of candidates;
4. Good for minorities and women
5. No regional fiefdoms.

Disadvantages

1. Inefficient Coalition Governments;
2. Destabilizing Fragmentation of party system;
3. Blackmailing power of small parties;
4. They allow an entry point into parliament to extremist parties;
5. Lack of link between candidate and territory;
6. They give too much power to party leadership.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

Single
Transferable Vote

Similar to the alternative vote **BUT** applied in multimember districts.

- Candidate-centered system (voters rank candidates).
- Preferential voting.
- Candidates must obtain a particular quota (usually Droop) to win the seat.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.

Proportional System

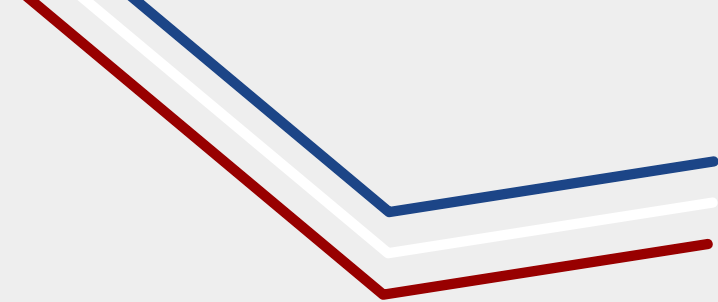
Single Transferable Vote

- Voters have an opportunity to convey a lot of information through their ballots.
- Voting for candidates from different parties is possible.
- The number of wasted votes is minimized.
- Candidates depend on transfer of votes
 - Incentive for campaigning on broad platforms.
- Proportional outcome but still strong candidate-constituency link.
- The effect of system depends on district magnitudes.



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



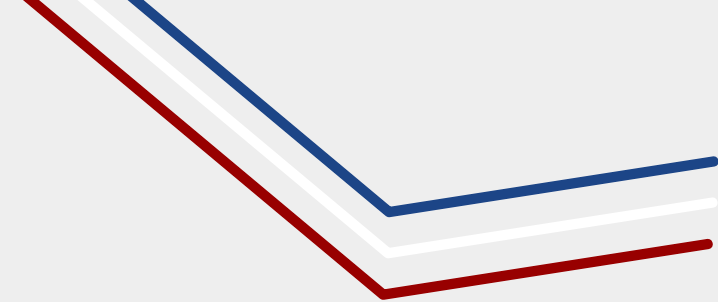
Mixed System

- Attempts to combine positive attributes of proportional and majoritarian systems.
- Voters elect their representatives through two different systems.
- In most mixed systems, votes are translated into seats at different levels (electoral tiers).
- E.g. district level, regional level, national level.
- Majoritarian system is usually used at the lower tier while proportional system at the higher tier (e.g. national level).



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



Mixed System

Indipendent

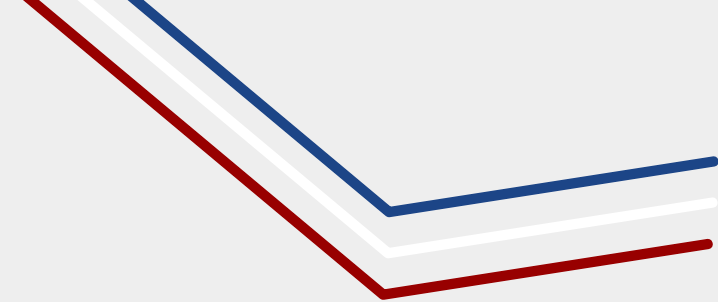
Majoritarian and proportional components are implemented independently.

- Ukraine
 - Parliament is composed of 450 members elected for a five-year term. Half of the MPs are elected on the basis of a proportional system with closed party lists in one single nationwide constituency. Political parties must receive at least five per cent of all votes cast in order to participate in the distribution of mandates of the proportional component. The other half of the MPs are elected in SMDs under a plurality system in a single round (FPTP).



3. Electoral Formula

Formula used to transform votes into seats in Parliament.



Mixed System

Dependent

- A.K.A. mixed member proportional system.
- Proportional component is used to compensate for disproportionalities produced by majoritarian formula.
- Therefore, application of proportional formula depends on distribution of seats through majoritarian formula.